only be issued when the Government issuing the new certificate is fully satisfied that the ship is in compliance with the requirements of regulation 5.4 of this Annex. In the case of a transfer between Parties, if requested within three months after the transfer has taken place, the Government of the Party whose flag the ship was formerly entitled to fly shall, as soon as possible, transmit to the Administration copies of the certificate carried by the ship before the transfer and, if available, copies of the relevant survey reports.

International Energy Efficiency Certificate

10 The International Energy Efficiency Certificate shall be valid throughout the life of the ship subject to the provisions of paragraph 11 below.

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
International Energy Efficiency Certificate

10 The International Energy Efficiency Certificate shall be valid throughout the life of the ship subject to the provisions of paragraph 11 below.

11 An International Energy Efficiency Certificate issued under this Annex shall cease to be valid in any of the following cases:

.1 if the ship is withdrawn from service or if a new certificate is issued following major conversion of the ship; or

.2 upon transfer of the ship to the flag of another State. A new certificate shall only be issued when the Government issuing the new certificate is fully satisfied that the ship is in compliance with the requirements of chapter 4 of this Annex. In the case of a transfer between Parties, if requested within three months after the transfer has taken place, the Government of the Party
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
months after the transfer has taken place, the Government of the Party
RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE
INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 18 -

whose flag the ship was formerly entitled to fly shall, as soon as possible, transmit to the Administration copies of the certificate carried by the ship before the transfer and, if available, copies of the relevant survey reports; or

.3 if the ship's equipment, systems, fittings, arrangements, or material covered by the survey were changed without the express approval of the Administration, as provided for in regulation 5.5 of this Annex, unless regulation 3 of this Annex applies.

Statement of Compliance related to fuel oil consumption reporting and operational

carbon intensity rating

12 The Statement of Compliance issued pursuant to regulation 6.6 of this Annex shall be

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
Statement of Compliance related to fuel oil consumption reporting and operational carbon intensity rating

12 The Statement of Compliance issued pursuant to regulation 6.6 of this Annex shall be valid for the calendar year in which it is issued and for the first five months of the following calendar year. The Statement of Compliance issued pursuant to regulation 6.7 of this Annex shall be valid for the calendar year in which it is issued, for the following calendar year, and for the first five months of the subsequent calendar year. All Statements of Compliance shall be kept on board for at least five years.

Regulation 10
Port State control on operational requirements

1 A ship, when in a port or an offshore terminal under the jurisdiction of another Party, is subject to inspection by officers duly authorized by such Party concerning operational requirements under this Annex, where there are clear grounds for believing that the master or

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
is subject to inspection by officers duly authorized by such Party concerning operational requirements under this Annex, where there are clear grounds for believing that the master or crew are not familiar with essential shipboard procedures relating to the prevention of air pollution from ships.

2 In the circumstances given in paragraph 1 of this regulation, the Party shall take steps to ensure that the ship shall not sail until the situation has been brought to order in accordance with the requirements of this Annex.

3 Procedures relating to the port State control prescribed in article 5 of the present Convention shall apply to this regulation.

4 Nothing in this regulation shall be construed to limit the rights and obligations of a Party carrying out control over operational requirements specifically provided for in the present Convention.

5 In relation to chapter 4 of this An nex, any port State inspection may verify, when

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
Convention.

5 In relation to chapter 4 of this An nex, any port State inspection may verify, when appropriate, that there is a valid Statement of Compliance related to fuel oil consumption reporting and operational carbon intensity rating, an International Energy Efficiency Certificate and a Ship Energy Efficiency Management Plan on board, in accordance with article 5 of the

present Convention.

6 Notwithstanding the requirements in paragraph 5 of this regulation, any port State inspection may inspect whether the Ship Energy Efficiency Management Plan is duly implemented by the ship in accordance with regulation 28 of this Annex.

Regulation 11
Detection of violations and enforcement

1 Parties shall cooperate in the detection of violations and the enforcement of the provisions of this Annex, using all appropriate and practicable measures of detection and environmental monitoring, and adequate procedures for reporting and accumulation of evidence.

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
provisions of this Annex, using all appropriate and practicable measures of detection and environmental monitoring, and adequate procedures for reporting and accumulation of evidence.

RESOLUTION MEPC.328(76)
AMENDMENTS TO THE ANNEX OF THE PROTOCOL OF 1997 TO AMEND THE INTERNATIONAL CONVENTION FOR THE PREVENTION OF POLLUTION FROM SHIPS, 1973, AS MODIFIED BY THE PROTOCOL OF 1978 RELATING THERETO- 19 -

2 A ship to which this Annex applies may, in any port or offshore terminal of a Party, be subject to inspection by officers appointed or authorized by that Party for the purpose of verifying whether the ship has emitted any of the substances covered by this Annex in violation of the provision of this Annex. If an inspection indicates a violation of this Annex, a report shall be forwarded to the Administration for any appropriate action.

3 Any Party shall furnish to the Administration evidence, if any, that the ship has emitted

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
be forwarded to the Administration for any appropriate action.

3 Any Party shall furnish to the Administration evidence, if any, that the ship has emitted any of the substances covered by this Annex in violation of the provisions of this Annex. If it is practicable to do so, the competent authority of the former Party shall notify the master of the ship of the alleged violation.

4 Upon receiving such evidence, the Administration shall investigate the matter and may request the other Party to furnish further or better evidence of the alleged contravention. If the Administration is satisfied that sufficient evidence is available to enable proceedings to be brought in respect of the alleged violation, it shall cause such proceedings to be taken in accordance with its law as soon as possible. The Administration shall promptly inform the Party that has reported the alleged violation, as well as the Organization, of the action taken.

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf

accordance with its law as soon as possible. The Administration shall promptly inform the Party that has reported the alleged violation, as well as the Organization, of the action taken.

5 A Party may also inspect a ship to which this Annex appl ies when it enters the ports or offshore terminals under its jurisdiction, if a request for an investigation is received from any Party together with sufficient evidence that the ship has emitted any of the substances covered by the Annex in any place in violation of this Annex. The report of such investigation shall be sent to the Party requesting it and to the Administration so that the appropriate action may be taken under the present Convention.

6 The international law concerning the prevention, reduction and control of pollution of the marine environment from ships, including that law relating to enforcement and safeguards, in force at the time of application or interpretation of this Annex, applies, mutatis mutandis, to

---CHUNK---

SOURCE: MEPC.328%2876%29.pdf
the marine environment from ships, including that law relating to enforcement and safeguards, in force at the time of application or interpretation of this Annex, applies, mutatis mutandis, to the rules and standards set forth in this Annex.

Chapter 3 Requirements for control of emissions from ships